**RAGNAR RESOURCES (PVT) LTD**
**VS**
**OFFICER IN CHARGE SOUTHERTON POLICE STATION N.O**
**AND**
**COMMISSION GENERAL OF ZIMBABWE N.O**
**AND**
**CONSTABLE KASUNZUMA**
**AND**
**CONSTABLE NKOMO**

**HIGH COURT OF HARARE**
**CIVIL DIVISION**
**CHIRAWU-MUGOMBA J**
**Harare, 25 March 2026**

*I. Chikaka* for the Applicant
*A. Zikiti* for the Respondents

**URGENT CHAMBER APPLICATION**

**CHIRAWU-MUGOMBA J**: On the 25th of March 2026, I struck off the roll this urgent chamber application. I have been requested to provide reasons and these are they. The applicant seeks an order in the interim as follows:

**INTERIM ORDER**

Pending the confirmation of the final order, it ordered that;

1. Respondents shall forthwith release into applicant's possession the motor vehicle, being a white Isuzu twin cab bearing registration number AGP0063

2. The 3rd and 4th respondents shall pay costs of suit,

The applicant also sought a final order as follows:

**TERMS OF FINAL ORDER SOUGHT**

1. The provisional order is and is hereby confirmed.

2. The impoundment, seizure and detention by respondents of applicant's motor vehicle, being a white Isuzu bearing registration number AGP0063, be and is hereby declared unlawful.

3. 3rd and 4th respondents shall pay costs of suit on a legal practitioner client scale.

Before the hearing, I caused a letter to be addressed to the applicant's legal practitioners on the following legal question: "Is it competent to seek declaratory relief through the medium of an urgent chamber application?" They responded as follows:

> *"Declaratory relief is not being sought through the medium of an urgent chamber. The basis for preferential listing lies in the interim relief sought, namely, the immediate return of Applicant's vehicle pending the return date. There is established a prima facie case for urgency in that respect. The declaratory relief concerns the legality of Respondents' conduct and is properly reserved for determination on the return date, where a clear right, rather than one open to some doubt, must be established."*

At the hearing, I posed the same question, and the applicant's counsel submitted that the relief being sought on an urgent basis is that of a *mandamus*. The *declaratur* is sought because of the illegal activities of the respondents and can only be considered on the return date for the final order. The urgency of the application pertains to the *mandamus*. Accordingly, the relief being sought is properly before the court. The respondents' counsel submitted that it is not proper to seek a *declaratur* in an urgent chamber application because the relief being sought is final in nature. The release of the motor vehicle if granted in the interim will be final in nature. In response, Mr *Chikaka*, for the applicant, submitted that the interim relief requires that the respondents return the vehicle, and that can be done through a *mandamus*. The interim relief and the final are clearly distinct and not similar.

At the end of the hearing, I struck off the matter from the roll for the following reasons: In *Dube & Ors* v *Constitutional Select Committee* HB 43-10 NDOU J postulated as follows,

> "The procedure for a declaration of rights like review proceedings, is either by way of summons and filing of pleadings in the usual way if there is a dispute of fact, or in the form of a special case on application if there is no dispute of fact. When the facts are disputed the

> court has a discretion as to the future course of the proceedings – *Hattingh* v *Ngake* 1966 (1) SA 64 (O) and *Adbro Investments Co Ltd* v *Minister of Interior* 1956 (3) SA 345 (A). Theapplicants were wrong to use an urgent chamber application for an application for a declaratory order".

I fully associate with those observations that one cannot seek declaratory relief through an urgent chamber application. It is akin to sneaking in a standalone application for a *declaratur* through the back door. One must always be mindful of the rigorous requirements for a declaratory order and an urgent chamber application is not the correct medium to seek such relief. Accordingly, the application before me is incompetent. In my view, an application for a *declaratur* must be a standalone either as a summons one (action) or court application. The application is therefore fatally defective and it is struck off the roll with costs.

*Mushoriwa Moyo*, applicant's legal practitioners

*Civil Division of The Attorney General*, respondents' legal practitioners